

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY
JUVENILE DIVISION

CASE NUMBER:

IN THE INTEREST OF:

NAME	DOB	SEX	SPN
Trey Davis	03/13/2013	M	
Jace Davis	07/12/2015	M	

Child.

AFFIDAVIT AND PETITION FOR PLACEMENT IN SHELTER

Comes now, the undersigned, CPI Courtney Beason who being duly sworn says:

1. On December 28, 2020, at 2:23pm the above named minor child(ren) was/were found within the jurisdiction of this court.

☒ The child(ren) was taken into custody by Pasco Sheriff's Office.

☐ The child(ren) need(s) to be taken into protective custody.

2. The name, age and residence of this/these child(ren) is/are:

NAME	DOB	SEX	RACE	ADDRESS
Trey Davis	03/13/2013	M	W	6819 23 rd Street, Zephyrhills FL, 33542
Jace Davis	07/12/2015	M	W	6819 23 rd Street, Zephyrhills FL, 33542

3. The name, relationship to the child(ren) and address of the child(ren)'s parents or other legal custodian(s) is/are:

NAME	DOB	RELATIONSHIP	ADDRESS
Matthew Davis	01/05/1988	Father	6819 23 rd Street, Zephyrhills FL, 33542
Christina Hills	02/05/1988	Mother	6819 23 rd Street, Zephyrhills FL, 33542

Paternity of the father(s) has been determined by:

- ☐ The mother and father were legally married at the time of birth or conception of the child(ren).
- ☐ The mother was not legally married at the time of birth or conception of the child(ren), the child(ren) was/were born on or after July 1, 1997, and the father's name appears on the child(ren)'s birth certificate.
- ☒ A court of competent jurisdiction has adjudicated paternity.
- ☐ Other:

4. The following individuals who were listed in #3 above have been notified pursuant to Section 39.402 (5), Florida Statutes in the following manner of the date, time and location of this hearing:

NAME:	MANNER NOTIFIED
Matthew Davis	Phone
Christina Hills	Phone

The following individuals who were listed in #3 above have not been notified of this hearing:

NAME	REASON

5. Probable cause exists to remove child(ren) from the legal care, custody and control of the parents/legal guardian within the intent and meaning of Section 39.402(1), Florida Statutes as the child(ren):

- ☒ has/have been abused, abandoned or neglected or is/are in imminent danger of illness or injury as a result of abuse, abandonment or neglect.
- ☐ was/were with a parent or legal custodian who has materially violated a condition of placement imposed by the court,
- ☐ has/have no parent, legal custodian or responsible adult relative immediately known and available to provide supervision and care;

Allegations:

On December 10th, 2020, the Florida Child Abuse Hotline received intake 2020-358203 alleging,
"On 12/10/2020, the mother and father were fighting. The children were out in the living room. The mother and father started going at it about a phone. The father bit the mother. The children did not see but heard it. Jace was telling the father to stop yelling at the mother. The mother contacted law enforcement. The father bit the mother on her right wrist. She had a bite mark. The father thought the mother was cheating because the mother was sitting on the bed on her phone. The father asked the

mother "who are you cheating on me with?" and took her phone. The mother went to get the phone back from the father. The father pushed the mother. The mother wrapped her arms around the father above his shoulders reaching for the phone. This is when the father bit her. The children were not on scene when law enforcement arrived. The grandmother came to pick them up. The father was arrested. There have been several calls to the home for domestic violence within the last year or so. The previous domestic violence incidents have all been unfounded."

Recommendations:

The department recommends the children, Jace and Trey Davis, be removed from the care of the mother, Christina Hills, and the father, Matthew Davis, due to household violence. The mother and father have had prior removals and are continuing to reside in the same home even when the court order states the mother cannot have overnight visitation. The father was arrested for domestic violence in the home. The department recommends that Jace and Trey Davis be placed with the maternal great-grandparents, Thurla and Richard Eckerd, who have permanent guardianship of the mother and father's youngest child. Visitation is recommended one hour, one time a week supervised by the department.

Evidence Gathered During Current Investigation:

On December 11 2020, Child Protective investigator (CPI) Beason spoke with the child victim, Jace Davis. He was clean and appropriately dressed. Jace advised that he and his brother stayed the night at their grandmothers house because their dad went to jail. He explained that he and his brother were playing in their bedroom, when they heard their parents fighting. He explained that his mother was laying on the bed, when his father jumped on her, attacked her and broke her necklace. He did not see this occur, only heard it. He is able to articulate his parents fighting daily in the home. He denies them getting yelled at or harmed in any way but is scared at home because they were always fighting. Jace advised that his mother lives in the home with them.

On December 11, 2020, CPI Beason spoke with the child victim, Trey Davis. He was clean and appropriately dressed. Trey advised that his mother resides in the home with them. Trey explained that he and his brother were in their bedroom, when they heard their mother and father fighting and yelling in their bedroom over money. He explained that he went into their room to see what was happening, when he saw his father jump on his mother and started smacking her head. He witnessed his mother trying to get him off of her and then ran outside. Trey advised that his mother and father fight every single day and he is sometimes scared in the home because he does not know when they will start fighting.

On December 11, 2020, CPI Beason spoke with the maternal great-grandmother, Thurla Eckerd, and the great-grandfather, Rich. They are sick of Christina and Matthew's games and feel they will never learn or change. Thurla advised that they cannot let go of the past and argue about everything. They do not want the boys to keep jumping houses and does not want them in that environment. She explained that Matthew has a temper and does whatever he wants, even if it is not right. Thurla does not feel that Matthew will ever let Christina go and they will continue going against whatever is told of them to do. They are willing to be safety monitors and plans on going to the court house Monday morning to file for emergency/full custody of the boys. They are willing to take custody of the children, as they already have premanent guardianship over their daughter.

The grandparents filed for emergency custody and were later denied.

On December 11, 2020, CPI Beason spoke with the mother, Christina Hills. She advised that she has been residing down the street until about two weeks ago. She explained that Matthew told her he wanted her back in the home to work things out, however advised they have done nothing but argue since she has been back in the home. She explained that he cannot get over their past and continues to bring it up to cause problems. Christina explained that this all started because she left late at night to pick up Christmas presents. She explained that when he came back, Matthew accused her of cheating and stealing money. She explained that she was laying in bed, when he attacked her, bit her wrist and starting hitting her head. She advised that the children were in the living room and did not see. She ran outside and called Law-Enforcement right away. Christina is aware that she cannot reside in the home with the children, per the judges orders, but does not have anywhere else to go.

On December 11, 2020, CPI Beason spoke with the father, Matthew Davis. He explained that he and Christina were arguing over money or something stupid and they started wrestling. He denies any physical abuse and explained it was almost like "rough sex" wrestling. Matthew explained that the neighbors called the police and he was arrested, however does not know why. He is aware that Christina is not allowed to reside in the home, per the court order. He did not have a reasoning as to why she is back in the home.

On December 11, 2020, CPI Beason spoke with All Aboard Daycare employee, Victoria. She advised that the boys have not been enrolled since October. She advised that the children appeared to be doing well. She did not have any knowledge of the mother being back in the home and hopes she is not because the mother and father are toxic together. She primarily saw the grandmother take the children and pick them up from daycare.

On December 28, 2020, CPI Beason spoke with the maternal great-grandmother, Thurla Eckerd. She advised that the father has caused a scene during their safety plan visitation on three separate occasions. She advised that on Christmas day, the father came over and immediately had an attitude because he wanted his children back by Christmas. She explained that he became angry, started mumbling under his breath and then got up to leave. Thurla advised that the father, Matthew, began to curse at her while leaving, and threatening her by saying, "I am going to kill all of you mother f*****s", and sped away. She is no longer willing to be a safety monitor as she cannot deal with the stress the parents are giving her. She is willing to take custody if needed.

The mother and father were both instructed that the mother cannot reside in the home, per the Judge's orders. Child Protective Investigator (CPI) Courtney Beason, specifically told them in their last involvement with the department in May, 2019. The father is continuing to allow the mother to reside in the home.

On December 28, 2020, CPI Beason spoke with the father, Matthew Davis. He denies anything happening at the grandmother's house on Christmas or any time before that. They started opening gifts, when Thurla told him they cannot open anymore because they need to save the rest for the mother to watch. He then went outside to have a cigarette and then told her he had to excuse himself and left. He is hiring a lawyer because if there is no court order and he can take his children and nobody can stop him. He is willing to comply with services with the department because it will look good on the paperwork for CPI. He does

not feel he needs any services and none of this is his fault. He advised that he and the mother have not had contact since this incident so it is resolved. He will run it by his lawyer about counseling. Matthew did not appear to understand the effects his behaviors are doing to his children. He made it very clear that he does not feel he needs any counseling or parenting classes.

The father was arrested on December 11, 2020, due to domestic violence towards the mother. Due to the prior removals, domestic violence, and the court order, which specifically denies the mother being in the home, the father has full knowledge of the domestic violence with the mother and it is exhibiting a strong pattern of concerning behaviors. This is the third removal from the mother and father. The father was previously considered non-offending and was fully aware the mother's domestic violence and is now the offender, being arrested for domestic violence. The behaviors are becoming worse and the children are able to articulate daily fighting between the mother and father. The father was offered services by the department, however made it clear he would do it to look good on paperwork. A present danger safety plan was implemented, however the father has caused problems with the maternal great-grandmother/safety monitor on three separate occasions. She is no longer willing to be a safety monitor.

Priors:

The family has extensive history with the department, to include judicial action. In May, 2020, an intake was received with not substantiated findings of household violence. The case was closed with the children in the care of their father and the mother was no longer in the home. The father filed a DVI against the mother, Christina Hills. April 24, 2019 an intake was received for inadequate supervision, which was closed with no indicators. January, 2019 a prior report was made for substance misuse - illicit drugs. The case was closed with not substantiated findings. The child, Bellmira, was sheltered and placed with the maternal grandmother. In July, 2019, intake was received with concerns of substance misuse-illicit drugs and inadequate supervision. The children were sheltered from the mother and placed with the biological father, Matthew Davis. The mother continues to use substances while in the care of the children and does not recognize the threats. She was offered services for inpatient rehab, however she refused. In August 2017, a report was called in with concerns of inadequate supervision, substance misuse illicit drugs, and household violence. The mother and father both declined drug screening. The case was closed remaining in the care of the mother and father, Matthew Davis. In July 2015 a case was screened out with the following allegations: "The mother tested positive for THC on admission. Waiting to collect urine and meconium from the baby." In 2006, a report was called in because of concerns for the children being left home alone with possible drug residue being located on items in the home. The mother and father, Edward Bailey, both tested positive to illegal substances that they did not have a valid prescription for. The father was charged with child neglect and arrested for leaving the children unsupervised. The children were sheltered from the parents care and placed in state custody.

Criminal:

Christina Hills has criminal history to include; child support, Failure to appear, Drugs-possession x2, controlled substance without prescription, Violation of probation, contempt of court

Matthew Davis has criminal history to include battery x2

Medical:

The children do not have any medical diagnoses and are not on any medication.

6. The continuation of the child(ren) in the home is contrary to the welfare of the child(ren) because the home situation presents a substantial and immediate danger to the child(ren)'s physical, mental or emotional health or safety which cannot be mitigated by the provision of prevention services. The provision of appropriate and available services will not mitigate the need for placement of the child(ren) in shelter care because:
- ☐ an emergency existed in which the child(ren) could not safely remain in the home;
- ☐ the home situation presents a substantial and immediate danger to the child(ren) which cannot be mitigated by the provision of prevention/diversion services;
- ☒ the child(ren) could not safely remain in the home despite the provision of the following services and efforts made by the Department of Children and Family Services/Pasco Sheriff's Office to prevent or eliminate the need for placement in shelter care:
- ☐ the child(ren) cannot safely remain in the home because there are no prevention services that can ensure the safety of the child(ren).
7. The child(ren) is/are in need of and the petitioner requests the appointment of a Guardian ad Litem.
8. The petitioner requests the parents, if able, be ordered to pay fees for the care, support and maintenance of the child(ren) as established by the Department under Chapter 39, Florida Statutes.
9. The petitioner requests the parents be ordered to provide the Department of Children and Family Services and the Department of Revenue financial information necessary to accurately calculate child support under Section 61.30, Florida Statutes, within 28 days of this order.
10. The affidavit and petition is filed in good faith and under oath.
11. Inquiry has been made pursuant to the Indian Child Welfare Act (ICWA).
- ☒ The child(ren) is/are not subject to ICWA.
- ☐ The child(ren) _____ is/are subject to the Indian Child Welfare Act (ICWA) and is/are associated with the _____ Tribe.
12. ☒ The child(ren) is/are not currently prescribed and taking psychotropic medication.
- ☐ The child(ren) _____ is/are currently prescribed and taking psychotropic medication. The Petitioner is requesting authorization, absent parental consent, to continue administering the child(ren)'s psychotropic medication; to wit;
-

13. ☐ Keeping Child Safe Act applies based upon the following:

☒ Keeping Child Safe Act does not apply.

14. The Department and its contract agencies, the Pasco Sheriff's Office, Child Protection Investigation Unit, Eckerd Community Alternatives, respectfully request the release of the child(ren)'s medical and educational records to the Department and its contract agencies, as well as the Guardian ad Litem, if appointed, and the child(ren)'s attorney.
15. Pursuant to Florida Rule of Juvenile Procedure 8.255(b) the Petitioner believes it is not in the best interests of the child(ren) to attend the shelter hearing in this matter for the following reason(s):

Age.

Therefore, the Petitioner requests the court find it is not in the best interest of the child(ren) to attend this hearing and excuse the child(ren)'s attendance.

16. Petitioner's statement pursuant to the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA): The number of minor child(ren) are five and seven. The name, period of residence, address, who the child(ren) lived with and relationship are:

Period of residence	Address	Who child lived with and relationship
2013-2014	27114 Dayflower Blvd. Wesley Chapel, FL 33544	Christina Hills/mother, Matthew Davis/father
2014-2017	11960 Chesterfield Road, Dade City, FL 33525	Christina Hills /mother, Matthew Davis /father
2017-present	6819 23 rd Street, Zephyrhills FL, 33542	Christina Hills/ mother, Matthew Davis/ father

17. I have not participated as a party, witness or in any other capacity in any other litigation or custody proceedings in this or any other state concerning custody of a child subject to this proceeding. I have no information of any other state custody proceeding pending in a court of this or any other state concerning the children subject to this proceeding, other than _____

☒ I do not know of any person not a party to this proceeding who has physical custody or claims to have custody of visitation rights with respect to any child subject to this proceeding.

☐ I do know of any person not a party to this proceeding who has physical custody or claims to have custody of visitation rights with respect to any child subject to this proceeding, to wit;

Wherefore, the affiant requests that this court order that this/these child(ren) be placed in the shelter custody of:

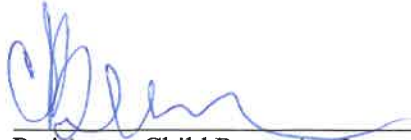
☒ The Department/Pasco Sheriff's Office having the discretion to place with Maternal great-grandparents, Thurla and Richard Eckerd upon an approved home study, abuse registry and criminal background check.

☐ At the home of a responsible adult relative/non-relative to wit:

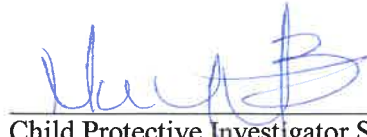
☐ Discretion to reunify with the parent/s _____

☐ Licensed Care

☐ Other: _____



Petitioner, Child Protective Investigator
Pasco Sheriff's Office



Child Protective Investigator Supervisor
Pasco Sheriff's Office

STATE OF FLORIDA
COUNTY OF PASCO

Before me, the undersigned authority, personally appeared COURTNEY BEASON, who, being sworn, says this Affidavit and Petition for Placement in Shelter is filed in good faith and on information, knowledge and belief is true. Sworn to and subscribed before me on 12/28/2020



Notary Public

Bernie McCabe, State Attorney
Sixth Judicial Circuit

Assistant State Attorney
P.O. Box 5028
Clearwater, Fl. 33758
(727) 847-8158
FBN:

NOTICE TO PARENTS/GUARDIANS/LEGAL CUSTODIANS

A date and time for an arraignment hearing is normally set at this shelter hearing. If one is not set or if there are questions, you should contact the Juvenile Court Clerk's Office at (727) 847-8178. A copy of the Petition for Dependency will be given to you or to your attorney, if you have one. A copy will also be available in the clerk's office. You have a right to have an attorney represent you at this hearing and during the dependency proceedings and an attorney will be appointed for you if you request an attorney and the court finds that you are unable to afford an attorney.

If you are a person with a disability who needs any accommodation to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact (727) 847-8110 (New Port Richey) and (352) 521-4274 ext. 8110 (Dade City) or 711 (V/TDD) within two working days of your receipt of this summons.